

Jainuddin v. State of U.P. — recovery certificate relegated to clause 6.8 objection

High Court of Judicature at Allahabad · Division Bench · 7 July 2022 · Writ-C No. 18443 of 2022 · **Writ disposed; liberty to file 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A consumer challenged a Tahsildar recovery certificate for Rs 1,53,397 as electricity dues. Without examining merits, the Division Bench accepted the distribution licensee's statement that an objection would be decided time-bound, relegated the petitioner to an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Jainuddin filed Writ-C No. 18443 of 2022 against the State of U.P. and the distribution licensee seeking certiorari to quash recovery certificate Letter no. 3696 dated 26 March 2022 issued by the Tahsildar, Sadar, District Hathras, for Rs 1,53,397 as electricity dues, and mandamus restraining further recovery. Counsel for respondent no. 2 (the Power Distribution Corporation) stated on instructions that the petitioner may file an objection against the impugned demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to electricity dues recovery

HOLDING

Without expressing any opinion on merits, a writ challenging a Tahsildar recovery certificate for electricity dues may be disposed of by relegating the consumer to an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed period, with coercive recovery stayed for a limited time pending that objection. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Court directed a clause 6.8 objection to the recovery demand to be decided after hearing, and stayed coercive action for eight weeks or until disposal, whichever is earlier. ¶ 1

alternative-remedy-statutory-appeal-6.8 Writ against the recovery certificate was disposed of without merits, with liberty to object under clause 6.8 of the Supply Code. ¶ 1

assessment-6.8-alternate-remedy Challenge to electricity-dues recovery was sent to the clause 6.8 objection forum rather than decided on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY DEMAND AND RECOVERY CERTIFICATE

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1